

IN THE SUPREME COURT OF PAKISTAN
(Original Jurisdiction)

PRESENT:

Mr. Justice Umar Ata Bandial, CJ
Mr. Justice Ijaz ul Ahsan
Mr. Justice Munib Akhtar
Mr. Justice Yahya Afridi
Mr. Justice Sayyed Mazahar Ali Akbar Naqvi
Mrs. Justice Ayesha A. Malik

Constitution Petition Nos.24 to 28 & 30 of 2023

(Trials of Civilian under the Army Act, 1952 is violative of the Constitution)

And

C.M. Appeal No. 80 of 2023 in Const. Petition Nil of 2023

(Declaration of trial of civilians under the Army Act, 1952 as unconstitutional, void and of no legal effect.)

Jawwad S. Khawaja
(in Const.P.24/2023)

Aitzaz Ahsan
(in Const.P.25/2023)

Karamat Ali and others
(in Const.P.26/2023)

Zaman Khan Vardag
(in Const.P.27/2023)

Junaid Razzaq
(in Const.P.28/2023)

Supreme Court Bar Association of Pakistan
(in Const.P.30/2023)

Imran Ahmed Khan Niazi
(in C.M. Appeal 80/2023)

Petitioner(s)

Versus

Federation of Pakistan, etc.
(in Const.Ps.24 & 27/2023)

Federation of Pakistan through the
Secretary, Ministry of Law and Justice,
Islamabad and others
(in Const.Ps.25-26, 28 & 30/2023)

Federation of Pakistan through Ministry of
Defence through its Secretary and others
(in C.M. Appeal 80/2023)

...Respondent(s)

- For the Petitioner(s) : Kh. Ahmad Hosain, ASC
(in Const.P.24/2023)
- Sardar Muhammad Latif Khan Khosa,
Sr. ASC
a/w Mr. Aitzaz Ahsan, Sr. ASC
(in Const.P.25/2023)
- Mr. Faisal Siddiqi, ASC
(in Const.P.26/2023)
- Mr. Zaman Khan Vardag, in-person
(in Const.P.27/2023) (VL Lahore)
- Mr. Salman Akram Raja, ASC
(in Const.P.28/2023)
- Mr. Abid S. Zuberi, ASC
(President, SCBAP)
Mr. Muqtadir Akhtar Shabbir, ASC
(Secretary, SCBAP)
Mr. Shakeel-ur-Rehman, ASC
(VP, SCBAP)
(in Const.P.30/2023)
- Mr. Shoaib Shaheen, ASC
Mr. Ajmal Ghaffar Toor, ASC
Syed Rifaqat Hussain Shah, AOR
(in C.M. Appeal 80/23)
- For the Federation : Mr. Mansoor Usman Awan,
Attorney General for Pakistan
Ch. Aamir Rehman, Addl. AG
Assisted by Mr. M. Ibrahim Khan, Adv
- For Govt.
of Balochistan : Mr. Muhammad Ayaz Swati, Addl. AG
- For Govt. of KP : Mr. Aamir Javid, AG (VL Peshawar)
Mr. Sultan Mazhar Sher Khan, Addl. AG
- For Govt. of Punjab : Mr. Wasim Mumtaz Malik, Addl. AG
Mr. Sana Ullah Zahid, Addl. AG
- For Govt. of Sindh : Mr. Saif Ullah, Addl. AG
(VL Karachi)
- For Imran Ahmed Khan : Mr. Uzair Karamat Bhandari, ASC
Niazi (Respondent No.9
in Const P No.25/2023) (VL Lahore)

For Rana Sanaullah : Mr. Shah Khawar, ASC
(Respondent No.10 in
Const P No.25/2023)

For Khawaja Muhammad : Nemo
Asif (Respondent No.11
in Const P No.25/2023)

For Muhammad Shehbaz : Nemo
Sharif (Respondent No.12
in Const P No.25/2023)

For other respondent(s) : Nemo

Date of Hearing : 02.08.2023

ORDER

In response to the application for formation of a Full Court Bench, filed and argued by Mr. Faisal Siddiqui, ASC yesterday, the learned Attorney General for Pakistan submitted that the application merits consideration but ultimately it is the discretion of the Court to decide whether or not a Full Court Bench should be constituted.

2. Having heard the arguments of both the learned counsel for the petitioners and the learned Attorney General, the members of the Bench arrived at the conclusion that it has already been held by this Court in **SMC No.4 of 2021** (PLD 2022 SC 306) that it is the sole prerogative of the Chief Justice of Pakistan to constitute Benches.

3. The Chief Justice, in his capacity as the master of the roster, having considered the matter, has indicated that formation of a Full Court Bench to hear the titled petitions is not feasible under the circumstances. On account of the summer vacations a number of Hon'ble Judges of the Court are not available for

constitution of Full Court Bench (comprising Judges who have not declined to hear these petitions). The present Bench comprising of 9 Hon'ble Judges available in Islamabad was formed when these matters were taken up. Two Hon'ble Judges (Qazi Faez Isa and Sardar Tariq Masood, JJ.) declined to sit on the Bench. One Hon'ble Judge (Syed Mansoor Ali Shah, J) recused himself from hearing the matter on account of objection raised on behalf of the Federation of Pakistan.

4. This application is accordingly disposed of in the above terms.

5. The learned Attorney General then resumed his submissions on the merits of the petitions and is still on his legs. To come up for further arguments by him on **03.08.2023**.

Islamabad
02.08.2023
Naseer/Meher LC